

# The Cochin Port Employees (Festival Advance) Regulations, 1997

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RULE THE-COCHIN-PORT-EMPLOYEES-FESTIVAL-ADVANCE-REGULATIONS-1997 of 1997

Published on 7 February 1997

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The Cochin Port Employees (Festival Advance) Regulations, 1997

Published vide Notification Gazette of India, Extraordinary, Part 2, Section 3(i) dated 7th February, 1997 (w.e.f. 7th February, 1997).

1948.

G.S.R. 65(E), dated 7th February, 1997. - In exercise of the powers conferred sub-section (1) Section 124, read with sub-section (1) of Section 132 of the Major Ports Act, 1963 (38 of 1963) the Government hereby approves the Cochin Port Employees (Festival Advance) Regulations, 1997 made by Board of Trustees for the Port of Cochin and the set in Second Schedule annexed to this notification. The said regulations shall come into force-on the date of publication of this notification in the Official Gazette.

Schedule

In exercise of the powers conferred by Section 28 of the Major Port Trust Act, 1963 (38 of 1963), the Cochin Port hereby

makes the following Regulations subject to approval of the Central Government and the same is published herein as required under Section 124 of the said Act.

1.

Short title and commencement.

- (i) These Regulations may be called the Cochin Port Employees (Festival Advance) Regulations, 1997.

(ii)

They shall come into effect from the date of their publication in the Official Gazette.

2.

Definitions.

- In these Regulations, unless the context otherwise requires---

(a)

"Accounts Officer" means the Financial Advisor and Chief Accountants Officer of the Board or any other Officer authorised by him in this himself.

(b)

"Advance" means the advance admissible under these Regulations.

(c)

"Board", "Chairman" and "Head of Department" shall have the same meaning as assigned to them in the Major Port Trusts Act, 1963.

(d)

"Head of Office" means the Drawing Officer concerned.

(e)

"Employees" means an employee of the Board.

(f)

"Financial Year" means the year beginning on the 1st April and ending on the 31st March following.

(g)

"Important Festival" means-

(i)

Republic day

(ii)

Ramzan

(iii)

Vishu

(iv)

Easter

(v)

Bakrid

(vi)

Independence Day

(vii)

Onam

(viii)

Deepavali

(ix)

Christmas

(x)

Any other festival which the competent authority may declare, by a general or special order, after taking into consideration the importance attached locally or otherwise to such festival.

3.

Extent of application. - (1) Save as otherwise provided in these regulations, the advance is admissible to all regular employees (permanent and temporary), of Classes III and IV including part-time employees, irrespective of their pay range.

(2)

The advance is not admissible to :-

(i)

Persons paid from contingencies, and

(ii)

Apprentices.

4.

Conditions of eligibility.

(1)

An advance shall be granted only on the event of any one of the important festivals, irrespective of the religious faith of the employee concerned.

(2)

The advance shall not be granted to an employee more than once in a financial year.

(3)

The advance under these regulations shall be granted to an employee if he is on duty, or on earned leave or on any other leave equivalent thereto, including maternity leave, but excluding leave preparatory to retirement on the date on which the advance is applied for.

(4)

The advance under these Regulations shall not be granted to an employee unless an advance already granted to him has been fully recovered.

(5)

The advance shall not be granted to a temporary employee unless he is likely to continue in service with the Board for a period of at least one year beyond the month in which the advance is disbursed.

(6)

The advance shall not be granted to an employee unless he applies for it in writing to the Head of office at least a fortnight before the date of the festival for which the advance is applied for. This condition can, however, be relaxed by the authority who is empowered to sanction the advance, in individual cases, if he is satisfied that the applicant was prevented from making the application within the time limit specified.

5.

Interest-free advance.

- The advance granted under these Regulations shall be free of interest.

6.

Amount of advance.

- The amount of advance which may be granted to a regular employee not exceeding Rs. 1,500 (Rupees one thousand five hundred only).

7.

Disbursement of advance.

- The amount of advance sanctioned under these regulations shall be disbursed to an employee before the festival in respect of which the advance is sanctioned.

8.

Recovery of advance.

(1)

The amount of advance granted under these regulations shall be recovered in not more than 10 equal monthly instalments.

(2)

The recovery of the amount of advance shall commence with the issue of pay or leave salary, as the case may be, for the month following that in which such amount is disbursed.

9.

Accounts of advance.

- The procedure for maintenance of accounts and watching the recoveries shall be as specified in Annexure 'A' to the regulations.

10.

Interpretation of Regulations.

- If any question arises as to the interpretation of these regulations, the same shall be decided by the Board.

11.

Repeal and savings.

- All rules corresponding to these regulations and any orders issued in this regard from time to time and in force immediately before the commencement of these regulations are hereby repealed.

Provided that any order made or any action taken under the regulations so repealed shall be deemed to have been made or taken under the corresponding provision of these regulations.

Annexure 'A'

[See Regulation 9]

1. Head of Office should ensure that the conditions attached to grant of festival advance are fulfilled and that proper accounts are maintained and the recoveries of the advance are effected.

2. The payment of advance should be entered invariably by each Head of Office and the Disbursing Officer in the relevant columns of the Pay Bill Register maintained in Form TR 22-A. Monthly recoveries effected from the individuals concerned should also be noticed in the recovery column in that register. No separate register merely for watching the recovery of advance individual-wise is required to be maintained.

monthly abstract of recoveries should be prepared and attached to the Pay Bill for a month by each Head of Office, copies of the monthly abstracts should be maintained by the Head of Office and kept bound for each year separately.

3. Each Head of Office shall be wholly and solely responsible for effecting the recoveries of such advance.

4. When an employee is transferred from one office to another, the amount of advance paid and the balance (instalment and amount) outstanding as on date of transfer shall be mentioned in the last pay certificate to be issued by the Head of Office.

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